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Ügyszám: NAIH-688-2/2024.

Előzmény: NAIH-7301/2023.

Tárgy: Határozat és végzés

A Nemzeti Adatvédelmi és Információszabadság Hatóság (a továbbiakban: Hatóság) [...] kérelmezőnek (a továbbiakban: Kérelmező) a Hatósághoz 2023. augusztus 15-én érkezett, és 2023. szeptember 5-én kiegészített kérelmére a [...] Zrt.-vel (a továbbiakban: Kérelmezett) szemben a Kérelmezett által a [...] szám alatti bankfiókjában üzemeltetett kamerarendszer útján megvalósuló adatkezelésről való tájékoztatás hiánya, az adatvédelmi tisztviselő elérhetősége, valamint az érintetti kérelme késedelmes teljesítése, továbbá hivatalból a Kérelmezett által a bankautomatákkal rendelkező

összes bankfiókjában üzemeltetett kamerarendszerek útján megvalósuló adatkezelésről való tájékoztatás gyakorlata tárgyában indult adatvédelmi hatósági eljárásban az alábbi döntéseket hozza:

I. A Hatóság a határozatában a Kérelmező kérelmének

részben helyt ad,

és megállapítja, hogy

- a Kérelmezett – a Kérelmező személyes adatai kezelésével összefüggésben a [...] szám alatti bankfiókjában üzemeltetett kamerarendszer vonatkozásában - megsértette a természetes személyeknek a személyes adatok kezelése tekintetében történő védelméről és az ilyen adatok szabad áramlásáról, valamint a 95/46/EK rendelet hatályon kívül helyezéséről szóló, az Európai Parlament és a Tanács 2016/679. számú rendelete (a továbbiakban: GDPR) 13. cikk (1) és (2) bekezdését, és
- a Kérelmezett megsértette a GDPR 12. cikk (3) bekezdését.

II. A Hatóság a határozatában hivatalból megállapítja, hogy a Kérelmezett a bankautomatákkal rendelkező összes bankfiókja vonatkozásában megsértette a GDPR 13. cikk (1) és (2) bekezdését.

III. A Hatóság a határozatában Kérelmező azon kérelmeit, hogy a Hatóság

- utasítsa a Kérelmezettet az adatvédelmi tisztviselő elérhetőségének módosítására,
- állapítsa meg a GDPR 5. cikk (1) bekezdése a) pontjának sérelmét, továbbá
- állapítsa meg a Kérelmező érintetti jogainak sérelmét,

elutasítja.

IV. A Hatóság a határozatában a II. pontban megjelölt jogsértések miatt a Kérelmezettet hivatalból 60 000 000 Ft, azaz hatvanmillió forint

adatvédelmi bírság megfizetésére kötelezi, amelyet a jelen határozat véglegessé válásától számított 30 napon belül köteles teljesíteni.

V. A Hatóság a végzésében az eljárást a Kérelmező azon kérelme vonatkozásában, hogy a Hatóság kötelezze a Kérelmezettet a GDPR 13. cikke szerinti tájékoztató közzétételére, megszünteti.

VI. A Hatóság a végzésében a Kérelmezett által másolatban a Hatóság rendelkezésére bocsátott –

[...] - gal kötött – megbízási szerződés üzleti titokként történő kezelésére irányuló kérelmének helyt ad.

* * *

A bírságot a Hatóság központosított bevételek beszédése célelszámolási forintszámlája (10032000-01040425-00000000 Központosított beszédési számla IBAN: HU83 1003 2000 0104 0425 0000 0000) javára kell megfizetni. Az összeg átutalásakor a NAIH-688/2024. BÍRS. számra kell hivatkozni.

Ha a Kérelmezett a bírságfizetési kötelezettségének határidőben nem tesz eleget, késedelmi pótlékot köteles fizetni. A késedelmi pótlék mértéke a törvényes kamat, amely a késedelemmel érintett naptári félév első napján érvényes jegybanki alapkamattal egyezik meg. A bírság és a késedelmi pótlék meg nem fizetése esetén a Hatóság elrendeli a határozat végrehajtását, a bírság és a késedelmi pótlék adók módjára történő behajtását. A bírság és a késedelmi pótlék adók módjára történő behajtását a Nemzeti Adó- és Vámhivatal végzi.

A jelen határozattal és végzéssel szemben közigazgatási úton jogorvoslatnak nincs helye, de az a közléstől számított 30 napon belül a Fővárosi Törvényszékhez címzett keresetlevéllel közigazgatási perben megtámadható. A keresetlevelet a Hatósághoz kell benyújtani, elektronikusan, amely azt az ügy

irataival együtt továbbítja a bíróságnak.¹ A tárgyalás tartása iránti kérelmet a keresetlevélben jelezni kell.

Az eljárást megszüntető végzéssel szemben benyújtott keresetlevelet a Fővárosi Törvényszék egyszerűsített perben, tárgyaláson kívül bírálja el. A teljes személyes illetékmentességben nem részesülők

számára a közigazgatási per illetéke 30 000 Ft, a per tárgyi illetékfeljegyzési jog alá esik. A Fővárosi Törvényszék előtti eljárásban a jogi képviselő kötelező.

I N D O K O L Á S

I. Az előzmények és a kérelem

(1)

A Kérelmező adatvédelmi hatósági eljárás iránti kérelme 2023. augusztus 1-jén érkezett a Hatósághoz, amelyben előadta, hogy aznap délután 16:50 és 17:00 között a Kérelmezett [...] szám alatti bankfiókjában található automatáját kívánta használni készpénzbefizetésre. A befizetés során az automata meghibásodott, a készpénzt elnyelte, azonban az összeg a Kérelmező számláján egyenlegként nem jelent meg.

(2)

A Kérelmező azonnal bejelentést tett telefonon a Kérelmezett ügyfélszolgálatán, ahol a panaszát rögzítették. Ezen túlmenően szeretne volna megnézni a bankautomatánál üzemelő elektronikus megfigyelőrendszer útján megvalósuló adatkezelésről szóló adatkezelési tájékoztatót, hogy ki tudja kérni az esetről készült kamerafelvételeket.

(3)

A Kérelmező előadta, hogy a bankfiók bejáratí ajtáján kihelyezett piktogram szerint a kamerákra vonatkozó adatkezelési tájékoztatót a bankfiók ügyfélterében lehet megtekinteni, azonban

¹ A közigazgatási per kezdeményezésére a NAIH_K01 elnevezésű űrlap szolgál. Az űrlap az általános nyomtatványkitöltő program (ÁNYK program) alkalmazásával tölthető ki. Az űrlap hozzáférhető és letölthető a Hatóság

honlapjáról: <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

3

At this time, the bank branch was already closed, meaning that the applicant did not have the opportunity to learn about the information notice and the contact details of the data protection officer.

(4)

Upon returning home, the Applicant sought information from the data processing notice found on page

[...] regarding the camera data processing taking place in bank branches; however, they did not find any relevant information therein. According to the Applicant, as a result, the Respondent did not fulfill its obligation to provide information under Article 13 of the GDPR, and thus the principle of transparency under Article 5(1)(a) of the GDPR was also violated.

(5)

The Applicant further stated that the contact details of the data protection officer listed in the Respondent's data processing notice included the email address [...], which they believe is a central email address. The Applicant finds it concerning that the data protection officer can only be contacted via a central email address, especially since the data subject must provide their personal data for exercising their rights, which could then be accessed by employees without the necessary authorization.

(6)

In light of the above, the Applicant requested the Authority to establish the violations committed by the Respondent, to hold it accountable, to impose a data protection fine on the Respondent, and to oblige the Respondent to properly publish the notice under Article 13 of the GDPR, as well as to modify the contact details of the data protection officer.

(7)

In its decision NAIH-7301-4/2023, the Authority notified the Respondent that a data protection authority procedure had been initiated against it based on the Applicant's request, and called for a statement to clarify the facts. The Respondent's statement was received by the Authority on September 7, 2023.

(8)

In a submission received by the Authority on September 5, 2023, the Applicant supplemented their request for a data protection authority procedure. In this, they stated that on August 1, 2023, at 19:26, they submitted a data subject request via email from the [...] email address to the [...] email address. In this request, they asked for copies of the audio recordings of two phone conversations held that day with the Respondent's customer service, as well as copies of the camera footage from the bank ATM located in the lobby at number [...], specifying that they were present in the lobby between 16:50 and 17:10. The Applicant expressed that they would also like to request the camera footage regarding the background of the deposit, the occurrence of the deposit, and the error messages displayed by the ATM. They further requested that the Respondent not delete the camera footage until the amount that the ATM swallowed during the deposit was refunded to their account by the Respondent.

(9)

In the supplemented request, the Applicant stated that, in their opinion, the one-month deadline available to the Respondent for fulfilling the data subject requests expired on September 3, 2023; however, the Respondent had not sent either the camera footage or the audio recordings to them.

(10)

In light of this, they requested that the Authority establish, in addition to the previously submitted request, that the Respondent violated the rights of the data subjects and did not respond to their requests within the deadline. They also requested that the Authority impose a data protection fine on the data controller within the framework of the data protection authority procedure.

(11)

In its decision NAIH-7301-9/2023, the Authority again called upon the Respondent to provide a statement regarding its general practice, and at the same time notified that the evidentiary procedure had been completed, and that the Respondent could provide a statement and exercise their right to access documents. After receiving the Respondent's statement, the Authority also notified the Applicant about the completion of the evidentiary procedure concerning their request and that they could provide a statement, as well as

right to inspect documents and make statements after the conclusion of the evidentiary procedure.

II. Facts

Notification regarding camera data processing

(12) The Respondent informed the Authority about its previous practice, whereby a pictogram was placed on the door of the bank branch, informing visitors that video recording was taking place and that further information regarding data processing was available in the waiting area.

(13) The waiting area refers to the customer space designated for receiving and serving clients, which is open during the bank branch's operating hours and closed outside of those hours, and entry is not permitted.

(14) As a result of the Authority's procedure, specifically after receiving the order sent by the Authority for the purpose of clarifying the facts, the Respondent reviewed its practice and established first and second level notifications in accordance with the European Data Protection Board's guidelines on the processing of personal data through video devices, Guideline No. 3/2019 (hereinafter: Guideline).

(15) According to the Respondent's statement sent in response to NAIH-7304-4/2023 (hereinafter: First Statement), the first level notification will be placed on the entrance doors of bank branches from September 6, 2023, continuously, in the content and form suggested by the Guideline, while the second level notification will be available in the customer area in the same location as before in paper form, and also electronically on the Respondent's website from September 6, 2023. The first level notification at the bank branch under number [...] was replaced on September 6, 2023, as a priority.

(16) The Respondent attached to its statement the new pictogram in accordance with the Guideline, a photograph of the entrance of the bank branch under number [...], which already displays the new first level notification, and overview and close-up photographs of the customer area, which present the updated second level notification. The Respondent also attached the data processing notification that was in effect until September 5, 2023, as well as the new data processing notification that came into effect on September 6, 2023.

(17) The Respondent informed the Authority that during the period prior to September 6, 2023, the data processing notification related to the use of the camera system was not available in electronic form, only in paper form at the bank branches, but from September 6, 2023, it has also made it available electronically on its website under the heading "Data Processing": [...].

(18) In response to the Authority's call for clarification of facts NAIH-7301-9/2023 (hereinafter: Third Statement), the Respondent stated that its notification practice, whereby only a pictogram calling attention to camera data processing was placed at the entrance of the bank branches, and the actual notification was only accessible in the waiting area, has been in effect since January 20, 2022. Prior to January 20, 2022, the Respondent had placed its notification regarding camera data processing at the entrance of the bank branches.

(19) In addition to the above, the Respondent stated in the Third Statement that it is possible to enter the bank branches outside of operating hours using an ATM located in the lobby with a bank card not issued by the Respondent. The Respondent

5

It is stated that between January 20, 2022, and September 5, 2023, a total of [...] individuals used the ATMs located in the lobby of the bank branches outside of opening hours. Approximately [...] individuals used the ATMs located in the lobby of the Applicant's bank branches between August 1, 2023, and September 1, 2023, outside of opening hours. The Applicant noted regarding this data that it can only provide information about how many individuals used the Applicant's ATMs during the specified period for its own clients. For those individuals who are not clients of the Applicant and used these ATMs, the Applicant has information on how many times the ATMs were used. In this regard, the Applicant calculated that each such use represents 1 individual.

(20)

In its Third Statement, the Applicant further stated – in response to the Authority's explicit question – that on September 5, 2023, it had [...] branches where separate ATMs were placed in the lobby, waiting area of the bank branch. The number of such branches between January 20, 2022, and

September 5, 2023, as well as after September 5, 2023, was the same as the number existing on September 5, 2023, namely [...] branches.

(21)

In its Third Statement, the Applicant provided information that it has been applying the practice of placing only a pictogram indicating camera data processing at the entrance of the bank branches, with the information being accessible only in the waiting area, since January 20, 2022. Prior to January 20, 2022, the Applicant placed its information regarding camera data processing at the entrance of the bank branches.

Contact details of the Data Protection Officer

(22)

The Applicant stated regarding the published contact email address of the Data Protection Officer, [...], that it is operated by the Applicant, and its management is carried out by the Applicant's 100% owned [...] (hereinafter: Company). The Applicant and the Company entered into a mandate agreement on November 19, 2012, under which the Company acts as the dependent prominent intermediary of the Applicant according to the provisions of Act CCXXXVII of 2013 on Credit Institutions and Financial Enterprises (hereinafter: Hpt.).

(23)

The activity of the Company under the contract qualifies as the dependent prominent intermediary activity defined under Section 3 (1) i) of the Hpt., as well as in Section 6 (1) point 90 a), and Section 10 (1) aa), and accordingly, the Company performs activities aimed at facilitating the provision of financial services, ancillary services, and the conclusion of contracts for services in the name, for the benefit, and at the risk of the Applicant, including the assumption of obligations or the conclusion of contracts in the name, for the benefit, and at the risk of the Applicant.

(24)

The activity subject to the contract on the part of the Applicant requires the authorization of the Hungarian National Bank (hereinafter: MNB) for its execution through the engagement of the Company, in accordance with Section 14 (1) h) of the Hpt. The necessary authorization was issued by the MNB in its decision number [...].

(25)

The mandate of the Company extends, among other things, to the conduct of complaint handling activities, the content of which and the detailed task description are included in Annex 7 of the mandate agreement between the Applicant and the Company, which the Applicant provided to the Authority, requesting that the mandate agreement be treated as a business secret.

6

(26) The Applicant highlighted within the complaint handling activities conducted by the Company that the Company records the written complaints received from the Applicant's clients and any individuals not in a business relationship with the Applicant regarding the provision of financial services and/or investment services in a designated system; accepts verbal complaints submitted to the Applicant; maintains telephone contact with complaining clients; ensures the investigation of complaints in accordance with the regulations set by the Applicant and relevant legislation, taking into account all pertinent circumstances in a manner that seeks to avoid the emergence of financial consumer disputes as much as possible; and communicates the results of the complaint investigation to the complainant in writing, adhering to statutory deadlines. The response includes the reasoning for the decision, possible remedies, as well as references to and availability of the policies and other documents that form the basis of the decision. The Applicant understands the term "complaint" above to also include data protection requests.

(27) Data protection-related notifications, data protection requests, emails related to data protection, or emails addressed to the data protection officer received at the email address [...] (hereinafter collectively referred to as: data protection request) are received and processed by the Company's organizational unit called the Contact Center.

(28) Following registration, notifications qualifying as data protection requests are forwarded based on

their content to the staff member handling data protection requests at the Applicant or to the dedicated staff members of the Company's Central Complaint and Error Handling organization. Responses to data protection requests are prepared by these employees, according to the type of data protection request. If the content of the data protection request justifies it, the Applicant and the Company's data protection officer will also be involved in preparing the response.

(29) The Applicant and the Company's data protection officer regularly, with the involvement of the aforementioned organizations, review the handling of data protection requests and the quality of responses on a quarterly basis.

(30) Employees involved in the workflows carry out their activities based on the relevant policy and workflow (which the Applicant attached to its statement). The procedures for handling data protection requests received by post, telephone, or personal notification, as well as those related to data protection or addressed to the data protection officer, are the same as described above.

(31) Employees involved in the execution of workflows are bound to confidentiality under their employment contracts, are entitled to access personal data based on their employment contracts, and handle such data in compliance with the provisions of the GDPR and the Hpt. to protect personal data, banking secrets, and other legally protected secrets. Therefore, data protection requests are handled by employees working in the designated organization, while the professional control over the processes is exercised by the data protection officer.

(32) Regarding how the requirements set forth in point 2.6 of the WP243 rev.01 guidelines concerning data protection officers are implemented at the Applicant, it stated that it provides several different channels – mailing address, in-person at any bank branch, email ([...]), and telephone – to ensure that data subjects can easily and directly contact the data protection officer.

(33) Due to the high number and complexity of inquiries from data subjects and data protection requests (2020: 2259; 2021: 1699; 2022: 1580), the Applicant's position is that it does not...

7

It is possible for the Data Protection Officer to handle and respond to each of them directly, which is why the Applicant and the organizational units of [...] have been designated. The Data Protection Officer exercises direct professional control over the operation of these organizational units.

(34)

According to the Applicant, the established processes adequately ensure the exercise of rights by the data subjects. Due to the unavailability of the Data Protection Officer, to their knowledge, no data protection request, complaint, or notification has been received by the Applicant so far, and therefore the data subjects have not been restricted in the exercise of their rights.

Handling of the Applicant's data subject requests

(35)

Regarding the data subject requests of the Applicant, the Applicant informed the Authority that the Applicant submitted their first complaint to the telephone customer service on 2023.08.01 at 17:22, which was recorded under [...] registration number, and then also submitted another complaint to the telephone customer service on 2023.08.01 at 17:51, which was recorded as a supplement to the previous complaint. The Applicant also sent their complaint to the central email address of the Applicant on 2023.08.01 at 19:27, which was recorded as part of their previous complaints, and then sent another email to the central email address of the Applicant on 2023.08.01 at 19:43, which was also recorded as part of their previous complaints.

(36)

In the supplement to the email complaint submitted on 2023.08.01 at 19:27, the Applicant requested the audio recordings of their complaints made by phone, as well as a copy of the video recordings related to the payment.

(37)

The Applicant stated that it evaluated and handled the complaints made by the Applicant – presented by phone and email – both as a financial complaint and as a data protection request. Considering that

the Applicant indicated that the failure to credit a large payment created an unexpected situation for them, the Applicant prioritized the resolution of this issue and credited the paid amount to the Applicant's account with an urgent solution on August 4, 2023, about which they informed the Applicant in their response letter dated August 4, 2023. In this response, the Applicant provided information solely regarding the crediting.

(38)

On August 15, 2023, at 13:02, the Applicant submitted another request to the [...] email address, in which they again requested the provision of the audio recordings and video recordings.

(39)

On September 5, 2023, the Applicant restricted the handling of the video recordings, and on that day, sent the requested audio materials and the data carrier containing the video recording by post, which the Applicant received on September 7, 2023.

II. Applicable Legislation

(40)

According to Article 2(1) of the GDPR, the GDPR must be applied to the data processing in this case.

(41)

GDPR Article 12(1): The data controller shall take appropriate measures to provide the data subject with all the information regarding the processing of personal data referred to in Articles 13 and 14, and every piece of information referred to in Articles 15-22 and 34.

8

in a concise, transparent, understandable, and easily accessible form, clearly and in an easily comprehensible manner, especially for any information addressed to children. The information must be provided in writing or by other means – including, where applicable, electronically. Upon request of the data subject, oral information may also be provided, provided that the identity of the data subject has been verified by other means.

(42)

GDPR Article 12(3): The data controller shall inform the data subject of the measures taken in response to a request under Articles 15-22 without undue delay and in any event within one month of the receipt of the request. If necessary, taking into account the complexity of the request and the number of requests, this period may be extended by a further two months. The data controller shall inform the data subject of any extension of the time limit, stating the reasons for the delay, within one month of the receipt of the request. If the data subject has submitted the request electronically, the information shall be provided electronically where possible, unless the data subject requests otherwise.

(43)

GDPR Article 12(4): If the data controller does not take action on the request of the data subject, it shall inform the data subject without undue delay and at the latest within one month of the receipt of the request of the reasons for not taking action, as well as the fact that the data subject has the right to lodge a complaint with a supervisory authority and to seek judicial remedy.

(44)

GDPR Article 13(1): If personal data is collected from the data subject, the data controller shall provide the data subject with the following information at the time of obtaining the personal data:

- a) the identity and contact details of the data controller and, if applicable, of the data controller's representative;
- b) the contact details of the data protection officer, if applicable;
- c) the purposes of the intended processing of the personal data and the legal basis for the processing;
- d) in the case of processing based on point (f) of Article 6(1), the legitimate interests pursued by the data controller or by a third party;
- e) where applicable, the recipients of the personal data or categories of recipients, if any;
- f) where applicable, the fact that the data controller intends to transfer personal data to a third country

or international organization, as well as the existence or absence of an adequacy decision by the Commission, or in the case of transfers referred to in Article 46, Article 47, or the second subparagraph of Article 49(1), the identification of the appropriate and suitable safeguards, as well as a reference to the means of obtaining a copy of those safeguards or the means by which they are made available.

(45)

GDPR Article 13(2): In addition to the information referred to in paragraph 1, the data controller shall provide the data subject with the following additional information at the time of obtaining the personal data in order to ensure fair and transparent processing:

- a) the period for which the personal data will be stored, or if that is not possible, the criteria used to determine that period;
- b) the data subject's right to request from the data controller access to personal data concerning them, the rectification of such data, the erasure of such data, or the restriction of processing concerning them, and to object to such processing, as well as the data subject's right to data portability;
- c) in the case of processing based on point (a) of Article 6(1) or point (a) of Article 9(2), the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;

9

- d) the right to lodge a complaint with a supervisory authority;
 - e) whether the provision of personal data is based on a legal obligation or a contractual obligation, or if it is a prerequisite for entering into a contract, as well as whether the data subject is obliged to provide the personal data, and what possible consequences may arise from the failure to provide the data;
 - f) the fact of automated decision-making referred to in Article 22(1) and (4), including profiling, as well as understandable information regarding the logic involved in such cases and the significance of such processing for the data subject, as well as the expected consequences for the data subject.
- Article 13(1): If personal data concerning the data subject is collected from the data subject, the data controller shall provide the data subject with all of the following information at the time of obtaining the personal data:

(46)

GDPR Article 15(3): The data controller shall provide a copy of the personal data undergoing processing to the data subject. For any further copies requested by the data subject, the data controller may charge a reasonable fee based on administrative costs. If the request is made electronically by the data subject, the information shall be provided in a commonly used electronic format, unless the data subject requests otherwise.

(47)

GDPR Article 18(1)(c): The data subject has the right to request the restriction of processing from the data controller if one of the following applies:

- c) the data controller no longer needs the personal data for the purposes of processing, but the data subject requires them for the establishment, exercise, or defense of legal claims;

(48)

GDPR Article 37(7): The data controller or the processor shall publish the name and contact details of the data protection officer and communicate them to the supervisory authority.

(49)

GDPR Article 58(2)(b), (c), and (i): When acting in its corrective capacity, the supervisory authority:

- b) shall impose an administrative fine on the data controller or the processor if their processing activities have infringed the provisions of this Regulation;
- a) shall impose an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures mentioned in this paragraph;

(50)

GDPR Article 77(1): Without prejudice to any other administrative or judicial remedies, every data subject shall have the right to lodge a complaint with a supervisory authority – in particular in the

Member State of their habitual residence, their place of work, or the place of the alleged infringement – if the data subject considers that the processing of personal data concerning them infringes this Regulation.

(51)

GDPR Article 83(2): Administrative fines shall be imposed depending on the circumstances of the case, in addition to or instead of the measures referred to in Article 58(2)(a) to (h) and (j). In determining whether a need for an administrative fine exists and in deciding the amount of the administrative fine, the following shall be taken into account in each individual case:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purposes of the processing concerned, as well as the number of data subjects affected by the infringement and the level of damage suffered by them;
- b) the intentional or negligent character of the infringement;
- c) any measures taken by the data controller or the processor to mitigate the damage suffered by data subjects;

10

- d) the extent of the liability of the data controller or the data processor, taking into account the technical and organizational measures implemented by them pursuant to Articles 25 and 32;
- e) any relevant infringements previously committed by the data controller or the data processor;
- f) the extent of cooperation with the supervisory authority in remedying the infringement and mitigating any potentially negative effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) how the supervisory authority became aware of the infringement, particularly whether the data controller or the data processor reported the infringement, and if so, with what level of detail;
- i) if any of the measures referred to in Article 58(2) were previously imposed on the relevant data controller or data processor in relation to the same subject matter, compliance with those measures;
- j) whether the data controller or the data processor adhered to the approved codes of conduct under Article 40 or the approved certification mechanisms under Article 42; and
- k) any other aggravating or mitigating factors relevant to the circumstances of the case, such as financial benefits gained or losses avoided as a direct or indirect consequence of the infringement.

(52)

Article 83(5)(b) of the GDPR: The following infringements shall be subject to an administrative fine of up to EUR 20,000,000, or in the case of undertakings, an amount not exceeding 4% of the total worldwide annual turnover of the preceding financial year, whichever is higher, in accordance with paragraph (2):

- a) the rights of the data subjects under Articles 12 to 22;

(53)

Section 2(2) of the Infotv.: The processing of personal data falling under the scope of Regulation (EU) 2016/679 of the European Parliament and of the Council (hereinafter: General Data Protection Regulation) shall be governed by the General Data Protection Regulation as supplemented by Chapters III-V and VI/A, as well as by points 3, 4, 6, 11, 12, 13, 16, 17, 21, 23-24 of Section 3, paragraph (5) of Section 4, paragraphs (3)-(5), (7) and (8) of Section 5, paragraph (2) of Section 13, Section 23, Section 25, paragraphs (3), (4) and (6) of Section 25/G, paragraph (2) of Section 25/H, paragraph (2) of Section 25/M, Section 25/N, paragraph (1) of Section 51/A, Sections 52-54, paragraphs (1)-(2) of Section 55, Sections 56-60, paragraphs (1)-(3) and (6) of Section 60/A, point a) and c) of paragraph (1) of Section 61, paragraphs (2) and (3) of Section 61, point b) of paragraph (4) and paragraphs (6)-(10) of Section 61, Sections 62-71, Section 72, and paragraphs (1)-(5) of Section 75, Section 75/A, and the Annex 1.

(54)

According to paragraph (1) of Section 60 of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority may initiate a data protection authority procedure ex

officio. The rules of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.) shall apply to the data protection authority procedure, with the supplements specified in the Infotv. and the deviations according to the General Data Protection Regulation.

(55)

Section 75/A of the Infotv.: The Authority shall exercise the powers set out in paragraphs (2)-(6) of Article 83 of the General Data Protection Regulation with regard to the principle of proportionality, particularly in that, in the case of a first-time infringement of the provisions regarding the processing of personal data as defined in legislation or mandatory legal acts of the European Union, the Authority shall primarily act by warning the data controller or data processor regarding the remedy of the infringement, in accordance with Article 58 of the General Data Protection Regulation.

(56)

According to paragraph (1) of Section 1 of Act LIV of 2018 on the Protection of Business Secrets (hereinafter: Business Secret Act), a business secret is information related to economic activities that is secret—either as a whole or as a combination of its elements—not publicly known or known only to those engaged in the relevant economic activity.

11

not easily accessible to individuals - therefore, a fact, information, other data, and compilations derived from them that have economic value, for the secrecy of which the holder of the secret demonstrates behavior that is generally expected in the given situation.

(57)

The provisions of Act CL of 2016 on general administrative procedures (hereinafter: Ákr.) shall apply to the data protection authority's procedure, with the supplements defined in the Infotv. and deviations according to the General Data Protection Regulation.

(58)

Ákr. § 10 (1): A client is a natural or legal person, or other organization whose right or legitimate interest is directly affected by the case, for whom the authority's register contains data, or who has been subjected to authority control.

(59)

Ákr. § 47 (1) c): The authority shall terminate the procedure if
c) the procedure has become unnecessary.

III. Decision

III.1. Subject of the procedure

(60)

The Authority examined, on the one hand, the Applicant's request regarding the Applicant's personal data in relation to the infringing information provided by the Respondent concerning camera data processing, and the fulfillment of the Applicant's request as a data subject in this regard. Furthermore, the Authority also examined the Respondent's information practice regarding camera data processing across all of the Respondent's bank branches equipped with ATMs.

III.2. Information for data subjects regarding data processing via the camera system

(61)

According to the Respondent's statement, a uniform practice was applied regarding data processing via the camera system in the case of bank branches, thus the Authority makes its findings generally in this regard, not exclusively concerning the bank branch at [...] number.

(62)

In the case of data processing via the camera system, data controllers must provide information to data subjects about the processing of their personal data in accordance with Article 13 of the GDPR.

(63)

Paragraphs (1)-(2) of Article 13 of the GDPR state that the information listed there must be made available to data subjects by the data controller at the time of obtaining the personal data.

(64)

According to point 7.1.1 of the Guidelines, the information must be placed in such a way that the data subject can easily recognize the circumstances of the surveillance before entering the monitored area. Furthermore, the Guidelines also define the requirements for first-level information. According to paragraph 114 of the Guidelines, first-level information (warning sign) should generally contain the most important information, such as details regarding the purposes of data processing, the identity of the data controller, and the existence of the rights of the data subject, as well as information regarding the most significant impacts of the data processing. This may include, for example, the legitimate interests of the data controller (or a third party) and, where applicable, the contact details of the data protection officer. Additionally, reference must be made to the more detailed second-level information, as well as the location and manner of its availability.

12

(65) According to the Applicant's statement and the attached images, prior to September 6, 2023, the sticker placed at the entrance of the bank branches only warned about the fact of camera data processing and informed that "the information regarding data processing can be viewed in the waiting area."

(66) Therefore, the pictogram warning about camera data processing did not contain any further information regarding the data processing, such as the identity of the data controller, the contact details of the data protection officer, the purpose of the data processing, the legal basis, the duration of the data processing, and the rights of the data subjects in relation to the data processing, meaning that the Applicant did not fulfill the requirements for first-level information as per the Guidelines.

(67) According to the Applicant's information, the waiting area refers to the customer area of the bank branch, meaning the area where data subjects cannot enter outside of opening hours. According to the Applicant's statement, prior to September 6, 2023, the information regarding data processing through the camera system was not available on the Applicant's website, and such information was not found by the Authority at the beginning of the procedure on the Applicant's website.

(68) From this, it follows that the information regarding the camera data processing conducted by the Applicant was not accessible to the data subjects outside of the bank branch's opening hours, even though they could enter the lobby of the bank branches equipped with ATMs (a total of [...] branches) outside of opening hours using their bank cards and could use the ATMs placed there, during which camera recordings were made of them. Consequently, until September 6, 2023, the Applicant did not fulfill its information obligation regarding the data subjects visiting the bank branch lobby outside of opening hours, considering that at the time of the collection of personal data, the information regarding the data processing through the camera system was not accessible to the data subjects, meaning that during this period they could not be aware of the circumstances of the processing of their personal data. Based on all of this, the Authority establishes that the Applicant violated Article 13 (1)-(2) of the GDPR by not making the information regarding camera data processing accessible to the data subjects outside of the bank branches' opening hours.

III.3. Contact details of the data protection officer

(69) The GDPR does not contain detailed provisions regarding the contact details of the data protection officer. According to Article 37 (7) of the GDPR, the data controller or the data processor shall publish the name and contact details of the data protection officer. Article 13 (1) of the GDPR, as well as Article 14 (1), also names the contact details of the data protection officer as information to be provided to the data subject.

(70) The issue of the contact details of the data protection officer is addressed in somewhat more detail in point 2.6 of the WP243 rev.01 guidelines of the Data Protection Working Party regarding data protection officers. According to this, Article 37 (7) of the GDPR serves the purpose of allowing data subjects (both within and outside the organization) and supervisory authorities to easily and directly contact the data protection officer without having to engage with other parts of the organization.

(71) According to the guidelines regarding data protection officers, the contact details of the data protection officer must include information that allows data subjects and supervisory authorities to easily reach the data protection officer (mailing address, dedicated phone number, and/or dedicated email address for this purpose). Where appropriate, other communication tools may also be used for public information purposes, such as

13

for this purpose dedicated hotline or the contact form leading to the data protection officer on the organization's website.

(72) The Applicant indicated the email address [...] as the contact for the data protection officer on the website, as well as the central customer service phone number, which serves not only for data protection-related requests but also for receiving financial complaints. However, following the proper identification of the requests, the Applicant and the Company's dedicated organizational units and employees respond to the data protection-related requests, and if the content of the request justifies it, the data protection officer of the Applicant and the Company will also be involved in preparing the response. In addition, the data protection officer of the Applicant and the Company regularly, quarterly, checks the handling of data protection requests and the quality of the responses.

(73) The Authority finds it necessary to note here that Article 39 of the GDPR defines the minimum tasks of the data protection officer, which do not include handling or responding to requests from data subjects. Therefore, while it is understandable that data subjects wish for their requests to be handled directly by the data protection officer, the data controller is not obliged to ensure this, and there is no obligation arising from the GDPR in this regard. Furthermore, it should not be overlooked that in an organization where customer data is processed in large volumes, and consequently a large number of requests from data subjects are received by the data controller, it is not expected that each individual request will be handled separately by the data protection officer. The data controller only needs to ensure that requests from data subjects are handled within the deadlines set out in Article 12(3)-(4) of the GDPR, in accordance with the GDPR rules.

(74) The Applicant's request was fulfilled by the Applicant, and its execution was not affected by the fact that it could not be sent directly to the data protection officer, meaning that the Applicant did not suffer any legal disadvantage from having to submit their requests to the Applicant at the [...] email address.

(75) Consequently, the Authority does not find a violation regarding the publication of the contact details of the Applicant's data protection officer and rejects the Applicant's relevant requests – for the establishment of a violation, for liability, and for an instruction to modify the contact details of the data protection officer.

III.4. Handling of the Applicant's requests as a data subject

(76) On August 1, 2023, at 19:26, the Applicant sent an electronic letter from the [...] email address to the [...] email address, requesting access to the audio recordings of two phone conversations conducted with the Applicant's customer service. Additionally, the Applicant requested access to the camera footage from the ATM located in the external area of the bank branch at [...] number, specifying the time period during which they were present in the customer area. Furthermore, the Applicant requested that the Applicant not delete the camera footage until the amount absorbed by the ATM is credited to their bank account.

(77) In its response letter dated August 4, 2023, the Applicant only addressed the Applicant's financial complaint and did not respond to the data protection requests in this letter. According to the Applicant's statement, the Applicant therefore submitted another request to the [...] email address on August 15, 2023, at 13:02, in which they again requested access to the audio recordings and camera footage.

(78) On September 5, 2023, the Applicant restricted the handling of the camera footage and on that day sent the requested audio recordings and the data carrier containing the camera footage, which was received by the Applicant on September 7, 2023.

(79) The Applicant intended to exercise their right to a copy under Article 15(3) of the GDPR, as well as their right to restriction of processing under Article 18(1)(c) of the GDPR concerning the camera recordings. According to Article 12(3) of the GDPR, the data controller shall inform the data subject of the measures taken in response to the request under Articles 15–22 without undue delay and in any case within one month of the receipt of the request.

(80) The Applicant submitted their data subject requests to the Data Controller via email on August 1, 2023, which were ultimately fulfilled on September 5, 2023. The Authority holds the view that the Applicant's data subject request—considering that it was submitted outside of working hours—should be regarded as having been received by the Data Controller on August 2, 2023, meaning that it should have been responded to by September 2, 2023. Consequently, the Authority finds that the Data Controller violated Article 12(3) of the GDPR by responding late to the Applicant's request for a copy and restriction of processing.

(81) Nevertheless, despite the delay, the Authority believes that the Applicant's data subject rights were not violated, as the delay was merely three days and did not affect the fulfillability of the Applicant's requests; the Data Controller complied with all of the Applicant's data subject requests, thus the Applicant did not suffer any further harm beyond the fact of the delay. In examining the violation of data subject rights, the Authority also took into account that the Data Controller fulfilled the Applicant's data subject requests even before becoming aware that the Applicant had extended their request for administrative proceedings to these issues, meaning that the fulfillment occurred without the Authority's intervention.

III.5. The Applicant's request for the imposition of a data protection fine

(82) The Authority rejects the Applicant's request for the imposition of a data protection fine; however, the application of this legal consequence does not directly affect the Applicant's rights or legitimate interests, and such a decision by the Authority does not create rights or obligations for the Applicant. Therefore, regarding the application of this legal consequence falling within the scope of public interest enforcement—specifically concerning the imposition of a fine—the Applicant does not qualify as a client under Section 10(1) of the Administrative Procedure Act (Ákr.), thus there is no basis for submitting a request in this regard, and this part of the submission cannot be interpreted as a request.

III.6. Termination of the procedure

(83) The Applicant requested that the Authority compel the Data Controller to publish the information notice under Article 13 of the GDPR.

(84) The Data Controller, without being compelled by the Authority, has transformed its information practice related to camera data processing, made the information notice accessible on its website, and also modified the first-level information, so that the most basic information related to data processing can now be learned from the information boards placed at the entrances of bank branches.

(85) Consequently, regarding this request from the Applicant, the procedure has become moot, and thus the Authority terminates the procedure in this regard based on Section 47(1)(c) of the Ákr.

III.7. The Applicant's request for the determination of a violation of Article 5(1)(a) of the GDPR

(86) Considering that the Authority has established a violation of Article 13 of the GDPR due to the lack of appropriate information, which also includes the lack of transparency in data processing, the GDPR...

13. The infringement of Article 5(1)(a) of the GDPR cannot be established separately without a factual element that has not been assessed in the context of the infringement of Article 13 of the GDPR.

(87)

For the above reasons, the Authority rejected the Applicant's request to establish the infringement of Article 5(1)(a) of the GDPR.

III.8. Decision on the handling of business secrets

(88) Regarding the detailed content of the contract concluded between the Respondent and the Company, the Respondent is not obliged to inform the data subjects, including the Applicant, and therefore the handling of its content as a business secret does not conflict with the provisions of the GDPR, except that the Company is a data processor in relation to complaint handling, as the Respondent is obliged to inform the Applicant in accordance with Article 13(1)(e) of the GDPR. For this reason, the Authority grants the Respondent's request concerning the document mentioned in the operative part based on Section 27(2) of the Ákr. (Administrative Procedure Act), with the clarification that the part of the document necessary for clarifying the facts, which generally describes the process of complaint handling, has been presented in the decision, as the procedure related to this can be known by the data subjects, and thus the Applicant can also be informed.

The handling of the content of the document as a business secret does not mean that the Authority cannot refer to the document containing the business secret in its decision, but rather that it does not allow unauthorized persons to fully access it.

III.9. Legal consequences

(89)

The Authority establishes that the Respondent violated Article 12(3) and Articles 13(1) and (2) of the GDPR.

(90)

Based on Section 75/A of the Infotv. (Information Act), the Authority exercises its powers set out in Articles 83(2)-(6) of the General Data Protection Regulation, taking into account the principle of proportionality, particularly that in the case of a first-time violation of the provisions regarding the processing of personal data as defined in legislation or in a binding legal act of the European Union, the remedy for the violation is primarily addressed by warning the data controller or data processor, in accordance with Article 58 of the General Data Protection Regulation.

(91)

In this context, the Authority considered all circumstances of the case based on Article 83(2) of the General Data Protection Regulation and Section 75/A of the Infotv. Given the circumstances of the case and the nature of the data processing, the Authority determined that a warning is neither a proportional nor a deterrent sanction regarding the violation of Articles 13(1)-(2) of the GDPR; therefore, the Authority decided to impose a fine ex officio, considering Section 61(1)(a) of the Infotv. in accordance with Article 58(2)(i) of the GDPR.

(92)

The Authority does not find it necessary to impose a data protection fine for the violation of Article 12(3) of the GDPR, considering that the Respondent only exceeded the deadline by three days, complied with the Applicant's request, meaning that the Applicant did not suffer any substantive legal disadvantage due to the delay. Given that the Authority did not find it justified to impose a fine in this regard, it did not examine whether the violation was negligent or intentional.

(93)

In determining the amount of the data protection fine imposed for the violation of Articles 13(1)-(2) of the GDPR, the Authority took into account the European Data Protection Board's 4/2022 decision.

16

in its guidance (hereinafter: Guidance)², which contains the criteria for calculating administrative fines under the GDPR. The amount of the data protection fine imposed for the violation of Articles 13(1) and (2) of the GDPR was determined based on the following criteria:

a. The violations committed by the Applicant – the infringement of the right of access and the right to restriction of processing – are classified as a more serious infringement falling into the higher fine category according to Article 83(5)(b) of the GDPR.

b. In determining the severity of the infringement, the Authority considered the following aspects.

a. Regarding the nature of the infringement, it is necessary to examine what interest the violated provision serves to protect. In the specific case, the Authority established the violation of Articles 13(1) and (2) of the GDPR.

The right to information under Article 13 of the GDPR is intended to ensure that data subjects can learn about the essential circumstances of the processing of their personal data before the processing begins or at the latest simultaneously with it, thereby ensuring that they can decide whether they wish to consent to the processing of their personal data, and that it is clear and transparent to them how their personal data is processed by the data controller.

The Authority considers the above as an aggravating factor in determining the severity of the infringement.

b. It is also necessary to evaluate the nature of the data processing, i.e., its geographical scope, the riskiness of the data processing, the negative impact on the data subject, as well as the relationship between the data subject and the data controller. The established infringement was committed by the Applicant in the course of activities carried out in Hungary, affecting all of its bank branches with ATMs. The data processing activity carried out through the camera system in the Applicant's bank branches cannot be considered high-risk.

According to the Authority, as a result of the infringement, the data subjects may have suffered a disadvantage, as did the Applicant.

The Authority does not establish the infringement solely concerning the Applicant but also in relation to all individuals for whom the Applicant failed to fulfill its obligation to inform. Based on the Applicant's statement, during the period of the infringement (from January 20, 2022, to September 5, 2023), approximately [...] individuals used the ATMs placed in the front areas of the Applicant's bank branches outside of opening hours, thus involving a large number of data subjects.

The individuals affected by the infringement were typically clients of the Applicant holding bank cards, as well as natural persons holding bank cards from other financial institutions, who were able to use their bank cards.

2 Guidelines 04/2022 on the calculation of administrative fines under the GDPR (Version 2.0.). Online: https://edpb.europa.eu/system/files/2023-06/edpb_guidelines_042022_calculationofadministrativefines_en.pdf

17

to enter the bank branch's lobby outside of business hours. Regarding the data processing examined, it can be stated that the affected customer is in a vulnerable position in every respect, as if no other person is present in the lobby, there are no witnesses to substantiate the harm they have suffered, and the only credible evidence (video footage) is held by the Respondent, who may also be an opposing party. The Authority believes that the Respondent should exercise great caution during the information provision process so that the customer knows whom to turn to in the event of a similar case related to the request (when they are likely to panic).

Based on the above, the Authority assesses the nature of the data processing, its impact on the affected individuals, and the relationship between the affected individuals and the data controller as factors that increase the severity of the infringement.

The Authority also considers the number of affected individuals as a factor that increases the severity of the infringement, as it is true that the case related to the request is special, since similar situations do not occur in every case, but the more individuals are affected, the greater the likelihood of such or similar situations arising, where the affected individual encounters an unexpected situation during cash withdrawal, relying solely on the video footage as the only evidence.

c. The Respondent's activities are primarily not aimed at the processing of personal data; it cannot be considered their main activity. However, for the provision of their services and the fulfillment of various legal requirements, extensive processing of personal data is essential for them, and for this reason,

they process a particularly large number of personal data, including the fact that they operate extensive camera systems in their bank branches, thus this should be taken into account as a factor that increases the severity of the infringement.

d. It should also be examined how long the infringement has existed or has been ongoing. As the Authority already explained in point b), based on the Respondent's statement, they changed their information provision practice related to camera data processing on September 6, 2023, meaning that prior to this, they continued the previous information provision practice, which the Authority has declared to be infringing. That is, between January 20, 2022, and September 6, 2023, their information provision practice was unlawful, meaning that the infringement persisted for a considerable time, which is a factor that increases the severity of the infringement.

e. In the Authority's view, the Respondent acted with gross negligence in establishing their information provision practice related to camera data processing, considering that they only became aware of the unlawfulness of their practice based on the Complainant's complaint, and that the Guidelines were adopted on January 30, 2020, thus the document detailing the rules and requirements of the GDPR and assisting in the establishment of good practices had been accessible to the Respondent for several years. Nevertheless, after January 20, 2022, they applied inappropriate practices and did not modify their information provision practice. This circumstance has been taken into account as a factor that increases the severity of the infringement.

f. In determining the severity of the infringement, the Authority also considers that the infringement does not affect special categories of personal data.

18

This circumstance was taken into account as a mitigating factor regarding the severity of the infringement.

g. Based on all these considerations – although the nature of the infringement is classified as a more serious violation – the Authority concluded that the violation of Articles 13(1)-(2) of the GDPR by the Applicant is considered to be of medium severity, meaning that the starting point for calculating the fine is 10-20% of the maximum fine that can be imposed.

(94) The Authority assessed the following circumstances as aggravating factors during the imposition of the fine:

a. The Applicant has previously violated the provisions of the GDPR on several occasions, with fines imposed in three cases [NAIH/2019/363/H (five hundred thousand forints); [.....] ([...]); NAIH-359/2023 (two million forints). Among the procedures conducted against the Applicant before the Authority, the decision numbered [...] established that the infringement of Article 13(1)(c) and (d) of the GDPR is relevant in the context of the present procedure, considering that in the specific case, the information provided by the Applicant to the data subjects did not cover all the information required under Article 13(1) of the GDPR, and the established infringement did not pertain to camera data processing, but rather to the data processing related to [...] due to the partial overlap of the violated GDPR provisions, this infringement is considered relevant in the context of the present procedure. [Article 83(2)(e) of the GDPR]

(95) The Authority assessed the following circumstance as a mitigating factor during the imposition of the fine:

a. The Applicant took measures to transform its information practices without a specific authority call for action, following the receipt of the decision initiating the present procedure, and began to apply the information practices recommended by the Guidelines – first and second level information – and made the information regarding camera data processing available on its website under the Privacy tab, outside the waiting area of the bank branches. Based on all this, the Applicant took steps without a specific call to eliminate its infringing information practice and align it with the provisions of the GDPR. [Article 83(2)(k) of the GDPR]

b. The Applicant credited the amount of money absorbed by the ATM back to the Applicant's bank account, mitigated the damage, and the Authority is not aware of any other similar damage incident. [Article 83(2)(k) of the GDPR]

(96) The Authority evaluates Article 83(2)(h) of the GDPR as a neutral circumstance during the imposition of the fine, while the circumstances under points (i) and (j) were not considered relevant, as they cannot be interpreted in relation to the specific case.

(97) The determination of the amount of the fine was based on the following considerations:

a. The Authority imposes a data protection fine against the Applicant in this case solely for the violation of Articles 13(1)-(2) of the GDPR. According to the Authority's position, the Applicant committed the infringement with a sanctionable behavior, meaning that the total amount of the fine cannot exceed the amount determined for the most serious infringement.

19

b. The net revenue of the Applicant for the year 2022 was [...] HUF, that is [...] forints, according to the Opten company information service. The imposed fine is [...] % of the net revenue.

c. Based on the provisions of Article 83(5) of the GDPR, in the case of the committed violations, the Applicant may be subject to an administrative fine of "up to 20,000,000 EUR [static maximum fine], or in the case of enterprises, an amount not exceeding 4% of the total annual global turnover of the previous financial year [dynamic maximum fine], with the higher amount being imposed."

d. 4% of the Applicant's net revenue for the year 2022 is [...] HUF – that is [...] forints, which corresponds to [...] EUR, that is [...] euros at an exchange rate of 1 EUR = 386.8 HUF, which exceeds the static maximum fine defined by Article 83(5) of the GDPR, that is the amount equivalent to 20,000,000 EUR. Since the fine must be calculated and proportioned based on the higher category applicable in this case between the static and dynamic amounts, the Applicant may be subject to a fine of up to [...] HUF – that is [...] forints – considering that 20,000,000 EUR, calculated at the above exchange rate, corresponds to [...] HUF – that is [...] forints – and among these, 4% of the Applicant's net revenue is the higher amount, thus the dynamic maximum is to be considered as the maximum fine that can be imposed.

e. The severity of the violations established by the Authority is medium, therefore the starting amount for the fine calculation is to be determined at 0.4-0.8% of the previous year's net revenue, considering that the Applicant's net revenue for 2022 exceeded 500 million euros. In light of this, the starting fine amount determined based on the severity of the violation shall not be further modified based on additional criteria – taking into account the enterprise's revenue – as this aspect has already been applied in determining the dynamic maximum fine for the Applicant.

f. Considering that the established violation is classified as medium severity, the starting point for the calculation of the fine is 10-20% of the maximum fine amount that can be imposed. 0.4% of the Applicant's net revenue for 2022 is [...] HUF, that is [...] forints, and 0.8% is [...] HUF, that is [...] forints.

g. The Authority assesses the mitigating circumstance under paragraph (84) as a significant mitigating circumstance, considering that the Applicant has eliminated the infringing condition based on its own decision, without a specific official call to do so. In light of this, as well as the general requirements for imposing a fine, which state that the fine must be effective and proportionate to the committed violation, the Authority considers it justified to impose a fine lower than 0.4% of the Applicant's net revenue for 2022.

h. Based on all of the above, the Authority decided to impose a data protection fine of 60,000,000 HUF, that is sixty million forints.

(98) The amount of the fine was determined by the Authority exercising its discretion based on legal provisions.

(99) In light of all of the above, the Authority decided as stated in the operative part.

IV. Other Questions

(100)

The Authority's jurisdiction is defined by Section 38 (2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(101)

The decision is based on Sections 80-81 of the Ákr. The decision becomes final upon its communication in accordance with Section 82 (1) of the Ákr.

(102)

According to Section 112 of the Ákr., and Section 116 (1), as well as Section 114 (1), there is a right to legal remedy against the decision and the termination order through administrative litigation.

(103)

The rules of administrative litigation are determined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) a) aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27 (1) b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(104)

Section 29 (1) of the Kp. and, in this regard, Section 604 of the Pp. apply, and according to Section 9 (1) b) of Act CCXXII of 2015 on the General Rules of Electronic Administration and Trust Services (hereinafter: E-Administration Act), the client's legal representative is obliged to maintain electronic communication.

(105)

The time and place for the submission of the statement of claim are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The Itv. exempts the initiating party from the prior payment of the fee under Section 59 (1) and Section 62 (1) h).

(106)

If the Respondents do not properly prove the fulfillment of their prescribed obligations, the Authority will consider that the obligation has not been fulfilled within the deadline. According to Section 132 of the Ákr., if the obligated party does not comply with the obligation stated in the Authority's final decision, it is enforceable. The Authority's decision becomes final upon communication according to Section 82 (1) of the Ákr. According to Section 133 of the Ákr., the enforcement is ordered by the authority that made the decision, unless otherwise provided by law or government decree. According to Section 134 of the Ákr., the enforcement is carried out by the state tax authority unless otherwise provided by law, government decree, or a local government regulation in a municipal authority matter.

Budapest, "according to the electronic signature and timestamp"

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Professor Emeritus